

governed by the laws of the state of Missouri.” (Carney Decl., ¶ 3, Exh. A at p. 7, ¶ 41.)

When a case involves a mandatory forum selection clause, the traditional forum non convenien analysis does not apply. (See *Intershop Communications v. Superior Court* (2002) 104 Cal.App.4th 191, 198 [“[A] motion on traditional grounds of forum non conveniens is addressed to the discretion of the trial court to decline jurisdiction, and the trial court retains a ‘flexible power’ to consider and weigh all the factors.... In contrast, in cases with a contractual forum selection clause, the burden of proof is on the plaintiff, the party resisting the motion.”].) A mandatory forum selection clause is presumed valid and will be enforced unless enforcement of the clause would be unreasonable under the circumstances of the case. (See, e.g., *Smith, Valentino & Smith, Inc. v. Superior Court* (1976) 17 Cal.3d 491, 496; *Quanta Computer Inc. v. Japan Communications Inc.* (2018) 21 Cal.App.5th 438, 444; *Intershop*, 104 Cal.App.4th at 198.)

To the extent that Defendants are arguing that a mandatory forum selection clause mandates dismissal, Defendants have failed to offer admissible evidence of a contract between the parties containing a mandatory forum selection clause.

Plaintiff challenges Defendants’ failure to authenticate the lease agreement that is attached as Exhibit A of the Declaration of Terence Carney, defense counsel. Mr. Carney appears to lack the ability to authenticate the lease agreement. And Plaintiff filed a declaration stating, “I entered into no written agreement *with Red Tail*” and that “*Red Tail and I* have not agreed to any forum selection clause that requires this suit to be filed in St. Louis County, Missouri.” (Naren Chaganti Decl., ¶¶ 4-5, emphasis supplied). The second amended complaint references a written lease with Red Tail (SAC, ¶3) but does not attach the lease agreement. And Plaintiff now appears to believe that Red Tail is not the owner of the Missouri apartment complex. (Chaganti Decl., ¶¶ 2-3.)

As such, it is unclear if the lease agreement attached as Exhibit A (which is purportedly between an FLT HUNTERS

GLEN LLC and “NARENDRA CHAGANTI”) is the same lease agreement on which Plaintiff NAREN CHAGANTI’s claim is based against Defendants RED TAIL RESIDENTIAL LLC and LINDSY HARVEY.

As such, Defendants have not established by admissible evidence that a mandatory forum selection clause exists between the parties.

***Traditional Discretionary Forum Non Conveniens***

“In applying the traditional forum non conveniens analysis, the trial court must engage in a two-step process, on which the defendant bears the burden of proof. [Citation.] In the first step, the court must determine whether a suitable alternative forum exists. [Citation.] If the court finds that a suitable alternative forum exists, it must then balance the private interests of the litigants and the interests of the public in retaining the action in California. [Citation.]” (*Animal Film, LLC v. D.E.J. Prods., Inc.* (2011) 193 Cal.App.4th 466, 472.)

**Step One - Suitable Alternative Forum**

“A forum is suitable if there is jurisdiction and no statute of limitations bar to hearing the case on the merits. [Citation.] ‘[A] forum is suitable where an action “can be brought,” although not necessarily won.’ [Citations.]” (*Animal Film*, 193 Cal.App.4th at 472.) The existence of a suitable alternative forum is a legal question. (*Ibid.*)

Defendants contend that Missouri is a suitable alternative forum given that the lease involves real property in Missouri. Further, Defendants contend that Defendants will consent to the jurisdiction of the out-of-state forum, Missouri, for the purposes of litigating these claims and will agree to toll the statute of limitations for the time this Action is pending against Defendant in California. To the extent that Defendants actually reach such an agreement, Defendants have identified a suitable alternative forum.